

TENDER AND CONTRACT TERMS AND CONDITIONS

Holcim (Australia) Pty Limited trading as Humes (**Humes**) refers to the contract terms and conditions provided in connection with the tender (**Customer Contract**). At this stage, Humes has not yet reviewed the proposed Customer Contract and submits its tender response on the basis of Holcim standard terms of sale, a copy of which can be found on Holcim's website at: <https://www.holcim.com.au/terms> and Humes terms and conditions (attached to its quotation) (**Humes Terms of Sale**).

Until the Customer Contract is finalised and executed, any goods or services supplied by Humes for the project or work undertaken in anticipation of the supply of goods will be supplied on Humes Terms of Sale.

Should Humes be awarded, then we will undertake a review of the Customer Contract and provide a detailed response setting out in full any qualifications and departures. In the meantime, we set out below the key terms required by Humes in all of its contracts:

1. **Fitness for Purpose:** Humes will warrant that the goods will be fit for the purposes for which goods of the same kind are commonly used and comply with the required specification, all relevant laws and Australian Standards. As Humes is not designing the project or performing any construction work Humes does not warrant that the goods are fit for the purpose for which the customer intends to use the goods or for any purpose specified in the contract.
2. **Indemnities:** Humes indemnities must be limited to losses that have been caused directly by Humes negligence or default only. Humes will not be liable for any claim or liability to the extent that it is due to or contributed to by the negligence or default of the customer, its officers, employees, agents or contractors. Humes standard position is for indemnities to be subject to reasonable restrictions, including an obligation on the customer to mitigate its losses.
3. **Limitation of Liability:** Humes requires an appropriate cap on its liability to ensure that risk and reward is fairly allocated between the parties. Accordingly, we expect that we will negotiate and agree to an acceptable limitation of liability. Humes also requires an exclusion of liability for consequential loss.
4. **Force Majeure:** Humes does not accept responsibility for events beyond our reasonable control such as flood, fire and similar events. We will require a clause covering Force Majeure events.
5. **Defects:** Humes will not be held liable for defects caused by others or placement. Humes will require notification and the opportunity to remedy a defect before others are engaged to do so.
6. **Risk and Title:** Humes standard position is for risk in the goods to pass upon commencement of unloading by the Customer or third party and title to the goods pass on payment
7. **Insurance:** Humes is covered by the Holcim Group global insurance program and any insurance requirements will need to be consistent with that program. Humes insurances are in place with reputable insurers and will not be amended.

Humes will agree to provide the following insurances only (if required):

- Public and Products Liability (\$20,000,000 any one occurrence and in the aggregate)
 - Professional Indemnity (\$10,000,000 any one occurrence and in the aggregate)
 - Third Party Motor Vehicle
 - Goods in Transit
 - Workers Compensation (Self insurers licence applies in certain states)
8. **Performance Security:** Humes is unable to agree to retentions, bank guarantees or the provision of parent company guarantees.
 9. **Reliance:** Humes relies on information and documentation provided by its customers to perform its works and manufacture goods.
 10. **Steel Supply:** Due to the current steel shortage locally, Humes may be required to purchase steel from overseas.
 11. **Fuel Levy:** Due to the current world events, Humes may require a regime to be included in its contracts to cover increases in fuel and related items that are impacting the production and supply of goods.